RATIO / CASE READING SHEET

Sobhraj v. Nepal

UN Human Rights Committee | CCPR/C/99/D/1870/2009 | Nepal | 2010

Public-reference AI draft | source quotes and PDF pages verified; interpretation needs review

Ratio reading aid, not an official case summary. Verify against the full judgment before use. No assessment of an individual case's prospects.

Forum and procedural stage

The communication was submitted to the UN Human Rights Committee under the Optional Protocol to the ICCPR; the Committee considered it admissible and issued Views on 27 July 2010, invoking article 5(4) of the Optional Protocol.

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Material facts

The author was arrested, tried by the District Court, Appeal Court and Supreme Court, and sentenced to life imprisonment. Photocopies of evidence were used, originals were never produced, and the Supreme Court failed to dismiss the case despite orders to obtain originals.

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Issue and actual outcome

The communication raised allegations of unfair trial, arbitrary arrest and detention, and life sentence. The Committee found violations of articles 10, 14 and 15 of the Covenant and concluded that the author’s rights were breached.

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Deciding body's reasoning

The Committee held that the prolonged proceedings, lack of impartiality, presumption of innocence violations, and denial of a proper defence breached article 14(1) and (5). It also noted the Supreme Court’s disregard for the Appeal Court’s decision on the Immigration Act, confirming violations of article 15(1) and article 14(7).

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General comparison factors and limits

The Committee emphasized that protection under article 14 applies to all persons facing criminal charges, regardless of sentencing status, and that the State must provide an effective remedy and prevent future violations, consistent with article 2 obligations.

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